

#	Case Name	Tentative
1	Becerra vs. The Pacific Labor Group, Inc. 2025-01484712	Motion to Compel Arbitration Defendants The Pacific Labor Group, Inc. and Pacific Modular Alliance Inc.’s motion to compel arbitration is DENIED. Defendants contend two arbitration agreements govern plaintiff’s claims in this action: (1) the arbitration agreement in Article VI (as extended by Appendix M) of the Southern California Master Labor Agreement between United General Contractors, Inc. and the Southwest Regional Council of Carpenters and Local Unions in the Twelve Southern California Counties and Nevada Affiliated with the United Brotherhood of Carpenters and Joiners of America for 2022-2026 (“CBA”) (see Schlecht Decl. ¶¶ 2, 13-14, Ex. A [“relevant excerpts” from CBA]); and (2) the arbitration provision in plaintiff’s employment agreement with Pacific Labor Group, Inc. dated 1/30/23. (See Schlecht Decl. ¶¶ 3, 15, Ex. B [employment agreement].) The CBA provides for arbitration through the “Independent Contractors Grievance and Arbitration Trust,” which maintains its own procedures to process grievances and “panel of independent and neutral arbitrators” with the authority “to hear and determine such grievances and disputes” and “issue a final and binding award, including appropriate remedies.” (Schlecht Decl. at Ex. A [CBA at Article VI, Appendix M].) The arbitration provision in the employment agreement provides for binding arbitration of all claims arising out of plaintiff’s employment “pursuant to the Federal Arbitration Act, 9 U.S.C. § 1-16, to the fullest extent permitted by law....” (Schlecht Decl. at Ex. B [employment agreement § 4].) Defendants did not bring a motion to compel pursuant to one of these agreements at the onset of litigation. Instead, they entered into a “Joint Stipulation for Binding Arbitration and Order Thereon” (stipulation) with plaintiff agreeing to arbitrate pursuant to different terms. Specifically, they agreed to submit the matter to binding arbitration pursuant to the terms of plaintiff’s employment agreement, but “in accordance with the procedures of the California Arbitration Act” rather than the FAA. (ROA No. 19 [stip. & order]; Schlecht Decl. at Ex. C [same; see recitals ¶¶ 2, 4-6 & stip. ¶ 1].) They also agreed that the “arbitrator shall be mutually agreed upon the parties,” and that if they “cannot agree on an arbitrator,” the parties “shall use a strike list from JAMS, ADR Services or Judicate West,” and “shall also meet and confer on

whether the arbitrator shall be appointed by the union of which Plaintiff is a member....” (Schlecht Decl. at Ex. C [stip. ¶ 2].)

On 7/11/25, the court entered an order pursuant to and explicitly based on this stipulation, requiring the parties to submit their claims to binding arbitration as agreed. (Schlecht Decl. at Ex. C [stip. & order, p. 4].)

That was over a year ago now. Plaintiff subsequently commenced arbitration with JAMS on 9/9/25. (Schlecht Decl. ¶¶ 5, 20, Ex. D; Hartman Decl. ¶¶ 10-13, Exs. 3-5.) In October 2025, the parties agreed to stay arbitration to pursue private mediation, and mediation was eventually had on 4/22/26, but it was unsuccessful. (Hartman Decl. ¶¶ 14-15.) As such, JAMS lifted the arbitration stay on 6/16/26, confirmed the commencement of arbitration as of 6/23/26, and the parties began the strike and rank process for selecting an arbitrator, which currently remains in progress. (*Id.* ¶¶ 15-18.)

After agreeing and being ordered to arbitrate pursuant to the employment agreement as modified by the parties’ stipulation, defendants now contend plaintiff should be required to arbitrate under the terms of the CBA “to ensure that this dispute is resolved in the forum the CBA requires” (Mtn. P&As at p. 2), claiming that the parties’ stipulation “preserved the question of whether arbitration should proceed under the CBA or the Employment Agreement.” (Schlecht Decl. ¶ 19; see *id.* ¶ 4, Ex. C [stip. & order].)

Defendants’ contentions are not well taken. Contrary to the assertions in defense counsel’s sworn declaration, the parties did **not** “preserve[] the question of whether arbitration should proceed under the CBA or the Employment Agreement” (Schlecht Decl. ¶ 19) in their stipulation. (See *id.* ¶ 4, Ex. C [stip. & order].) Instead, they chose to proceed under the employment agreement as modified by their stipulation. The stipulation states in no uncertain terms that the parties have agreed to submit this matter to binding arbitration “pursuant to the Employment Agreement” and “in accordance with the procedures of the California Arbitration Act,” and does not purport to preserve the right to arbitrate pursuant to the CBA, which imposes entirely different rules and procedures, even though the parties clearly knew of the CBA at the time. (*Id.* at Ex. C [in particular, recitals ¶¶ 2, 4, 5 & stip. ¶¶ 1-2]; see *id.* ¶ 19 [declaring that paragraph 2 of the stipulation refers to the CBA].)

		At best, the parties stipulated to “meet and confer” as to whether “the arbitrator” should be “appointed by the union of which the Plaintiff is a member.” But the parties also agreed that if “the Parties cannot agree on an arbitrator the Parties shall use a strike list from JAMS, ADR Services or Judicate West,” and it is clear from the parties’ briefing that they do not agree to an arbitrator selected by the union or with proceeding with such an arbitrator under the terms of the CBA. Thus, per the parties’ stipulation, the arbitrator must be determined by a strike list from JAMS, ADR Services or Judicate West. This is how the parties have been proceeding to date, how plaintiff wishes to proceed, and how the parties should continue to proceed (i.e., pursuant to the court order entered pursuant to stipulation on 7/11/25), as defendants have failed to provide any authority allowing them to renege on their post-dispute stipulation or the court order entered pursuant to that stipulation. (See, e.g., <i>Law Offices of Ian Herzog v. Law Offices of Joseph M. Fredrics</i> (1998) 61 Cal.App.4th 672, 678-680 [a party who expressly agrees to an action taken by the trial court or in the trial proceedings, such as by signing a stipulation inducing the action, cannot challenge that action in later proceedings]; see also <i>B.D. v. Blizzard Entertainment, Inc.</i> (2022) 76 Cal.App.5th 931, 949-950 [because a subsequent written contract alters the terms of a previous contract, updated terms control].) Accordingly, the motion is denied. The parties shall proceed with arbitration as previously ordered by the court on 7/11/25. Defendants shall give notice.
2	Cerni vs. Karen A. Sunday & Associates, Inc. 2026-01561774	Motion to Lift the Discovery Stay Plaintiff Joseph S. Cerni’s Motion to Lift Stay is GRANTED in part. On April 9, 2026, Plaintiff filed the Complaint alleging a cause of action for malicious prosecution and abuse of process. On June 16, 2026, Defendant Karen A. Sunday & Associates, Inc. filed an anti-SLAPP motion. The filing of the anti-SLAPP motions stays discovery. (Code Civ. Proc., § 425.16(g).) Plaintiff files this motion to lift the discovery stay so that he can conduct discovery related to Sunday’s claim that she told her lawyers everything and relied on their advice to sue Plaintiff for a commission on the sale of commercial property without a written contract.